

APPOINTMENT AND TERM OF THE DIVISION SUPERINTENDENT

A. The School Board appoints the Division Superintendent from the list of eligible candidates certified by the Virginia Board of Education and determines the term of employment. The Division Superintendent's term expires on June 30 of the last year of the Division Superintendent's contract. The Division Superintendent serves an initial term of not less than two years nor more than four years. At the expiration of the initial term, the Division Superintendent is eligible to hold office for the term specified by the School Board, not to exceed four years. In addition, the School Board shall be notified 30 days in advance of any meeting at which a vote is planned on a renegotiated contract unless the members agree unanimously to dispense with the 30-day notice requirement.

B. The Division Superintendent shall be appointed by the School Board within 180 days after a vacancy occurs. In the event a School Board appoints a Division Superintendent in accordance with the provisions of this section and the appointee seeks and is granted release from such appointment prior to assuming office, the School Board shall be granted a 60-day period from the time of release within which to make another appointment. If the School Board fails to appoint a Division Superintendent within 180 days of a vacancy, the Virginia Board of Education will appoint a superintendent for the Division. If the School Board has not appointed a Division Superintendent within 120 days of a vacancy, it will submit a written report to the Superintendent of Public Instruction demonstrating its timely efforts to make an appointment and containing a status report with a timeline for making the appointment prior to the 180-day deadline. The School Board may request up to an additional 180 days within which to appoint a Division Superintendent. If the School Board does not appoint a Division Superintendent within the timeline in subsection (B), it will immediately notify the Virginia Board of Education, in writing, of its failure to do so. If there has been no extension provided by the Virginia Board of Education, within 30 days of the 180th day after the vacancy occurs, the School Board will submit, in writing, its preferred candidate(s), not to exceed three, for the position. The Virginia Board of Education may consider these candidates and other eligible individuals. The Virginia Board of Education may authorize the State Superintendent of Public Instruction to conduct the search for a Division Superintendent.

C. Contract Negotiation. If the Virginia Board of Education appoints a Division Superintendent, the contract for the Division Superintendent will be negotiated by the School Board.

[Former Policy 3-6]

Adopted: 6/22/93

Confirmed: 5/10/11, 10/27/15

Revised: 1/25/22

Legal Refs.: Code of Virginia, 1950, as amended, §§ [22.1-58](#), , [22.1-60](#), [22.1-61](#)